

and that brew-houses are necessary, yet the rule in law is, *sic utere tuo, ut alienum non lædas*: and chimneys, dye-houses, and tan-fats are also necessary, but so to be used, that they be not prejudicial to their neighbors.

And in this case the jury found that this new brew-house and privy was maliciously erected to deprive the plaintiff of the benefit of his habitation and office, and that the plaintiff was hereby damnified, as in the declaration is alledged.

And upon conference and consideration of the case, all the Judges did concur that judgment should be given for the plaintiff. Vide 1 Croke, 510, *que un tallow furace est nusance*.